Sanjay Kumar vs State Nct Of Delhi on 5 July, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELH
+ BAIL APPLN. 1372/2024
SANJAY KUMAR .....Applica

Thr

versus
STATE NCT OF DELHI
Through:

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN

ORD

% 05.07.2024 CRL.M.A. 11963/2024 (for exemption)

1. Exemptions allowed, subject to all just exceptions.

2. The application stands disposed of.

3. The present application is filed seeking regular bail in FIR No. 706/2023 dated 21.07.2023, registered at Police Station Bhalswa Dairy, for offences under Sections 306/498A/34 of the Indian Penal Code, 1860 ('IPC').

4. The FIR was registered at the instance of the complainant, namely, Manisha Kumari, who is the sister of the deceased victim. It is the case of the prosecution that the deceased victim This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2024 at 20:44:25 (wife of the applicant) committed suicide because the applicant had an extra-marital affair and he used to harass the victim on the pretext of dowry.

5. On 13.05.2023, a PCR call was made by the complainant stating that her sister (the victim) has committed suicide by hanging herself. She also informed that the victim had called her on the

preceding night and told her that the applicant had beaten her and he had married for a second time.

6. It is alleged that the police officers reached the crime spot and found the victim lying on bed in a room on the ground floor of the house. The post-mortem report of the victim indicates that the cause of death was Asphyxia due to Ante-Mortem Hanging.

7. The complainant made a complaint before the concerned DCP on 01.06.2023 as well. Thereafter, pursuant to enquiry, the present FIR was registered.

8. In her statement recorded under Section 164 of the CrPC, the complainant supported her earlier statement and stated that the victim had told her that the applicant had solemnised another marriage with a woman, namely, Preeti and that the applicant, on the pretext of night duty, used to frequent the house of Preeti. She further stated that on 12.05.2023, the victim saw the applicant making video calls to Preeti due to which she snatched his phone whereafter the applicant had beaten her mercilessly.

9. The learned counsel for the applicant submits that the applicant has clean antecedents and he has been falsely implicated in the present case. He has been in custody since 23.08.2023.

10. He submits that the applicant categorically denies having ever made any demand for dowry. He submits that Section 306 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2024 at 20:44:25 of the IPC is also not made out against the applicant and the same has been levelled against the applicant solely because Section 304B of the IPC cannot be added in the present case on account of the applicant being married to the victim for over seven years.

11. He submits that there is nothing on record which establishes that the applicant had any extra marital affair and all the allegations in regard to his alleged promiscuity having pushed the victim to suicide are baseless in nature.

12. He submits that both the children of the applicant, in their statements under Section 164 of the CrPC, made it clear that the applicant and the victim used to fight because of the natural marital discord.

13. He submits that the complainant has lodged the present case out of her own vendetta maliciously and she has tried to extort money from the applicant and his family members for not opposing the bail application.

14. He submits that a complaint has also been lodged by the applicant's mother against the complainant at Police Station Bhalswa Dairy for extortion, cheating and fraud.

15. He submits that the complainant is responsible for the unfortunate death of the victim and that she was the root of all marital discord between the applicant and the victim.

16. He submits that it is peculiar that while the victim expired on 13.05.2023, however, the present FIR was lodged only on 21.07.2023 after more than two months.

17. He submits that the chargesheet has been filed in the present case and no incriminating evidence has been found against the applicant. He submits that and no purpose would be This is a digitally signed order.

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18. Per contra, the learned Additional Public Prosecutor for the State vehemently opposes the present bail application. He submits that the offences alleged against the applicant in the present case are heinous in nature.

19. He submits that there are specific allegations that the relations between the applicant and the deceased were not good and the applicant used to instigate her by asking as to when she will die and taunt her that she was merely a hindrance and he would bring Preeti home when she died.

20. He submits that the bail applications of the applicant have been rightly dismissed by the learned Trial Court on four occasions owing to the gravity of the allegations.

21. The learned counsel for the complainant supports the contentions of the State. He submits that a number of complaints were made by the victim against the applicant, however, the same were settled as the applicant promised to improve his conduct.

22. He states that there was no delay in registration of the FIR and the complainant had tendered a complaint soon after the incident. He submitted that despite the complaint, the FIR was registered belatedly during the pendency of the complainant's application under Section 156(3) of the CrPC.

23. I have heard the learned counsel and perused the record.

24. It is settled law that the Court, while considering the application for grant of bail, has to keep certain factors in mind, such as, whether there is a prima facie case or reasonable ground to believe that the accused has committed the offence; the nature This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2024 at 20:44:25 and gravity of the accusation; severity of the punishment in the event of conviction; the danger of the accused absconding or fleeing if released on bail; reasonable apprehension of the witnesses being threatened; etc.

25. The prosecution has primarily alleged that the suicide of the victim was abetted by the applicant as he was indulging in an extra marital affair with a girl named Preeti. It is also alleged that the applicant used to harass and beat the victim.

26. Section 306 of the IPC reads as under:

> "Section 306. Abetment of suicide.--If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."

27. A bare reading of the above provision would demonstrate that for an offence under section 306 of IPC, there are twin requirements, namely, suicide and abetment to commit suicide.

28. The Hon'ble Apex Court in the case of Randhir Singh v. State of Punjab : (2004) 13 SCC 129 observed as under:

> "12. Abetment involves a mental process of instigating a person or intentionally aiding that person in doing of a thing. In cases of conspiracy also it would involve that mental process of entering into conspiracy for the doing of that thing. More active role which can be described as instigating or aiding the doing of a thing is required before a person can be said to be abetting the commission of offence under Section 306 of IPC."

29. Allegation against the husband indulging in extra-marital affair sans the allegation of instigation to commit suicide, would not be insufficient to allege the offence under Section 306 of the IPC against the accused husband. While the promiscuity of a spouse is reflective of moral turpitude on part of the spouse and can push a person to take their own life due to agony over the failed marriage, the same by itself cannot lead to the irrefutable This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2024 at 20:44:25 conclusion that the accused is guilty of abatement. A more active instigation on part of the unfaithful spouse would be required.

30. The Hon'ble Supreme Court in case of Geo Verghese v. The State of Rajasthan : 2021 SCC OnLine SC 873, while quashing FIR under Section 306 of IPC, has observed thus:

> "30. If, a student is simply reprimanded by a teacher for an act of indiscipline and bringing the continued act of indiscipline to the notice of Principal of the institution who conveyed to the parents of the student for the purposes of school discipline and correcting a child, any student who is very emotional or sentimental commits suicide, can the said teacher be held liable for the same and charged and tried for the offence of abetment of suicide under Section 306 IPC."

31. Allegations have been made in the present case that the applicant used to taunt and goad the victim to kill herself as he wanted to live with a lady named 'Preeti'. The case of the prosecution is primarily based on the statements of the complainant and the minor children of the applicant. I have perused their statements.

32. The applicant has denied having any extra marital affair. The lady namely Preeti, with whom the applicant had allegedly talked on a video call which led to the altercation between the victim and the applicant one day before the victim's death, has not been examined in the present case. On being pointedly asked, the IO has states that Preeti could not be found. However, no CDR has been examined to establish the said fact either.

33. It is contended by the prosecution that the children of the applicant have supported the case of the prosecution. Prima facie, while the eldest son of the applicant - 'B' has stated that the applicant and the victim had a fight prior to the victim's death, the other two sons of the applicant - 'A' and 'P', aged 10 This is a digitally signed order.

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34. It is relevant to note that 'B' in his statement under Section 164 of the CrPC has mentioned that the applicant and the victim used to fight because the applicant used to talk with a girl named Preeti. He has also stated that the applicant never made any demand of dowry and that the victim killed herself of her own will.

35. At this stage, it would be premature to comment as to the veracity of the evidence of the complainant and the minor children of the applicants, however, in the absence of cogent evidence that supports the statement of the complainant, prima facie, the possibility of the applicant's innocence cannot be ruled out.

36. It is also argued that Section 306 of the IPC is not made out against the applicant. As the charges are yet to be framed in the present case, this Court does not consider it apposite to comment on the said aspect at this stage. The threshold for framing of charges is presence of a grave suspicion against the accused person which will be tested by the learned Trial Court at the appropriate stage.

37. It is also argued by the complainant that multiple complaints had been made by the victim earlier as well. The allegations and defences in this regard will be considered during the course of the trial.

38. Admittedly, the applicant has deep roots in the society. The applicant, therefore, cannot be called a flight risk. It is stated that the three minor children of the applicant are currently This is a digitally signed order.

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39. While it is relevant to note that the minor children of the applicant have been arrayed as witnesses by the prosecution, however, their statements under Section 164 of the CrPC have already been recorded. Charges have not been framed in the present case till now. The applicant is in custody since 23.08.2023. In such circumstances, the applicant cannot be made to languish in custody during the pendency of the trial.

40. In view of the above, without commenting further on the merits of the case, I am of the opinion that the applicant has made out a case for grant of bail in the present case. The applicant is, therefore, directed to be released on bail on furnishing a personal bond for a sum of 50,000/- with two sureties of the like amount, subject to the satisfaction of the learned Trial Court / Duty MM / Link MM, on the following conditions:

> a. The applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case or tamper with the evidence of the case, in any manner whatsoever;
>
> b. The applicant shall under no circumstance leave the country without the permission of the learned Trial Court; c. The applicant shall appear before the learned Trial Court as and when directed;
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> d. The applicant shall provide the address where he would be residing after his release and shall not change the address without informing the concerned IO/ SHO;
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> This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/07/2024 at 20:44:26 e. The applicant shall, upon his release, give his mobile number to the concerned IO/SHO and shall keep his mobile phone switched on at all times.

41. In the event of there being any FIR/DD entry / complaint lodged against the applicant, it would be open to the State to seek redressal by filing an application seeking cancellation of bail.

42. It is clarified that the observations made in the present order are only for the purpose of deciding the present bail application and should not influence the outcome of the Trial and also not be taken as an expression of opinion on the merits of the case.

43. The bail application is allowed in the aforementioned terms.

AMIT MAHAJAN, J JULY 5, 2024 This is a digitally signed order.

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